

		And, for what it is worth, a mandatory injunction is automatically stayed pending appeal. <i>Kettenhofen v. Superior Court</i> (1961) 55 Cal. 2d 189, 191; <i>Agricultural Labor Relations Board v. Superior Court</i>, <i>supra</i>, 149 Cal. App. 3d at 713. <u>Discussion</u> <i>Likelihood of Prevailing on the Merits</i> For her motion, Plaintiff describes her fall and injuries, further stating that her condition has worsened due to delays in treatment. [Motion MPA (ROA #72) at 5; Nguyen Decl. (ROA #68), ¶¶ 207.] She does not expressly discuss her causes of action or which one she is likely to prevail on that supports issuance of an injunction. Nor does she identify ongoing acts by Defendant that are obstructing Plaintiff's access to medical care. Defendant Coast Community College District contends that Plaintiff cannot show a likelihood of prevailing on what is essentially a premises liability action against a governmental entity because she has not complied with the Government Claims Act. Govt. Code §§ 835, 945.4, 950.2, 912.4. [Opp. (ROA #119) at 4-5.] Even if Plaintiff could and did show a likelihood of prevailing on her claims for liability for personal injury, it is unclear how or what right to injunctive relief against Defendant, rather than a claim for damages, this would give rise to. For the first time on reply Plaintiff suggests that the court issue a preservation order, but new requests for injunctive relief may not be raised on reply. Moreover, Plaintiff has provided no factual basis for such relief. <i>Irreparable Harm/Balance of Harm</i> If Plaintiff's conditioning is worsening due to delayed medical care, that is harm. But as discussed, there is no tie in with the claims asserted by Plaintiff or to any allegations of ongoing conduct by Defendant. There is no balance of harms to weighed because there is no showing of conduct of Defendant to be enjoined. For all the above reasons, the motion for preliminary injunction is denied.
7.	2024-1448174 Mourshaki vs. Farmers Insurance Company, INC	Defendant Farmers Insurance Exchange's ("Defendant") Motion for Summary Judgment on Plaintiff Abraham Mourshaki's ("Plaintiff") Complaint is granted. <u>Procedural Issues</u> Defendant's request for judicial notice (ROA 38) is granted. (Evid. Code, § 452, subd. (d).)

The Court declines to rule on Plaintiff's objections (ROA 75), because they are not material to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).)

Merits

Defendant moves, under CCP § 437c, for summary judgment on the Complaint or, in the alternative, summary adjudication on each of Plaintiff's three causes of action.

Legal Standard

"[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . ." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id.* at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff's complaint. (*FPI Development v. Nakashima* (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; *580 Folsom Associates v. Prometheus Development Co.* (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.)

Application

The Court finds Defendant is entitled to summary judgment, because all of Plaintiff's causes of action are time-barred.

Insurance Code section 2071 states, in relevant part, that: "No suit or action on this policy for the recovery of any claim shall be

sustainable in any court of law or equity unless all the requirements of this policy shall have been complied with, and unless commenced within 12 months next after inception of the loss.” (Ins. Code, § 2071.) The purpose of the “shortened limitations period” in section 2017 is to “relieve insurance companies of the burden imposed by defending old, stale claims.” (*Aliberti v. Allstate Ins. Co.* (1999) 74 Cal.App.4th 138, 145.) The policy need not recite the language in section 2071 in verbatim in order to be enforceable. (See *State Farm Fire & Casualty Co. v. Superior Court* (1989) 210 Cal.App.3d 604, 610.)

The commencement of the limitations period is “determined by reference to reasonable discovery of the loss and not necessarily turn on the occurrence of the physical event causing the loss.” (*Prudential-LMI Com. Insurance v. Superior Court* (1990) 51 Cal.3d 674, 686.) “The statute is tolled from the time the insured gives notice of the claim to the insurance company until ‘the time the insurer formally denies the claim in writing.’” (*Migliore v. Mid-Century Ins. Co.* (2002) 97 Cal.App.4th 592, 604, citing *Prudential-LMI Com. Insurance*, supra, 51 Cal.3d at p. 678].)

Here, it is undisputed that the subject policy, in accordance with the Insurance Code, states: “Suit on or arising out of the Section I - Property Coverage of this policy must be brought within one year after inception of the loss or damage.” It is also undisputed that the water damage was discovered on 9/18/23. (UF no. 3.) Plaintiff reported the water loss to Defendant on 11/19/23. On 12/18/23, Defendant sent Plaintiff a letter, which provided in relevant part: “Unfortunately you have not met the conditions of your duty and we are unable to provide coverage for your claim based on the information known at this time”; and, “We’ve completed the adjustment of your loss and we are closing your claim.” (Although Plaintiff disputes the effect of this letter, he does not dispute that the letter includes such language.)

Based on the undisputed dates, the one-year limitations period began on 9/18/23 (when the water damage was discovered), but was tolled from 11/19/23 to 12/18/23 (the time the claim was made until the date it was denied). After taking into account the approximately two months from when the damage was discovered until the claim was made, that leaves approximately 10 months remaining in the one-year limitations period. The Court agrees Defendant unequivocally denied Plaintiff’s claim by the letter sent on 12/18/23. As such, the last day to bring this action expired on or about 10/18/24, which is approximately two months prior to the date that Plaintiff filed this action.

In his opposition, Plaintiff contends this action is timely, because there is a “triable issue of fact” regarding Defendant’s “proposition that the December 18, 2023 correspondence constituted an unequivocal denial of Plaintiff’s claim as a matter of law.” Plaintiff argues “Defendant’s own conduct after that date demonstrates otherwise,” because “Defendant continued requesting additional information from Plaintiff concerning the claim” and “Defendant’s own internal claim records” included the notation, “claim is still denied pending the documentation requested is received.” (Opp’n at pp. 6-7.)

This argument is not supported by the case authority. For example, in *Migliore v. Mid-Century Ins. Co.* (2002) 97 Cal.App.4th 592, the insured received a letter stating that no further benefits will be provided beyond those previously paid. The insured argued this was not an “unequivocal denial” because the letter did not use the words “deny” or “denied,” and “the letter ‘suggests’ that the claim remains open because appellant was ‘invited’ to submit further information for consideration.” (*Migliore v. Mid-Century Ins. Co.* (2002) 97 Cal.App.4th 592, 605.) The appellate court rejected this argument, finding that, even without the words “deny” or “denied,” the letter contained “unequivocal language that no further payment on the claim would be made.” The fact that the insurer expressed a willingness “to reconsider its denial upon receipt of further pertinent information” did not change the result, because “[a] statement of willingness to reconsider does not render a denial equivocal.” (*Ibid.*)

Likewise, in *Singh v. Allstate Ins. Co.* (1998) 63 Cal.App.4th 135, the appellate court found the plaintiffs’ claim was unequivocally denied where the “denial letter clearly informed plaintiffs they had one year within which to file suit,” notwithstanding the fact that the letter also “closed with the statement that, ‘[i]f there is any further information you would like us to consider, please do not hesitate to bring this information to our attention.’” (*Singh v. Allstate Ins. Co.* (1998) 63 Cal.App.4th 135, 138, 142.)

Federal authority applying California law has also reached the same result. (See, e.g., *Shugerman v. Allstate Ins. Co.* (C.D. Cal. 2009) 594 F.Supp.2d 1131, 1141 [subsequent correspondence between defendant and plaintiff’s counsel did not further toll the statute of limitations or otherwise estop defendant from raising the statute of limitations as an affirmative defense].)

Here, the 12/18/23 letter from Defendant to Plaintiff clearly stated: “we are *unable to provide coverage* for your claim based on the information known at this time”; “we have *completed* the adjustment of your loss”; and “we are *closing* your claim” (emphasis

added). Moreover, the letter actually used the word “denied” when it informed Plaintiff: “If you believe your claim has been wrongfully rejected or denied, in whole or in part, please contact us for further clarification.” Further, the letter also directed Plaintiff to the “one year” limitations period within which to bring a “Suit Against Us” and informed Plaintiff that it “will inform [him] in writing if any such additional information results in reopening your claim.” However, it is undisputed that Plaintiff was never informed that his claim would be reopened. Even if Defendant’s internal claim file stated that the Claim was “pending,” Defendant has not shown he justifiably relied on this representation, because there is no evidence that he was aware of the notations in his Claim file prior to filing suit, or that this was communicated to him. As such, Plaintiff’s breach of contract claim is time-barred.

Likewise, Plaintiff’s claim for breach of the implied covenant is time-barred, because it is inextricably intertwined with his breach of contract claim. This limitations period is applicable a claim for breach of the implied covenant where the “denial of the claim in the first instance is the alleged bad faith and the insured seeks policy benefits.” (*Velasquez v. Truck Ins. Exchange* (1991) 1 Cal.App.4th 712, 721 [“A bad faith action based on denial of a claim in the underlying policy is an action on the policy”].) By his second cause of action for breach of the implied covenant, Plaintiff alleges Defendant “breached the implied covenant of good faith and fair dealing by failing to conduct a reasonable investigation, wrongfully denying the claim without justification, and ignoring evidence provided by Plaintiff”; “Defendants acted in bad faith by denying the policy claim with prior knowledge of the inaccuracy.” (Compl. at ¶ 25.) Plaintiff’s bad faith claim is clearly “an action on the policy.” (See *Velasquez*, supra, 1 Cal.App.4th at p. 722 [breach of contract and bad faith claims “are inextricably bound” where “[n]one of the actions alleged by appellants as bad faith relate to events subsequent to initial policy coverage so as to convert their action from one on the policy to one which is not”].)

The one-year limitations period also applies to Plaintiff’s UCL claim, because Plaintiff admitted, in a request for admission, “that the only relief [he is] seeking under [his] cause of action for unfair business practices is the recovery of the policy benefits that” he claims he is owed “related to the subject September 2023 water loss.” (ROA 45—Exh. 3 at p. 6 [RFA no. 16].) Plaintiff tried to “dispute” this fact by citing his Complaint. (See Pl. Sep. St. at “DF” no. 33.) However, “a party cannot rely on the allegations of his or her own pleadings to make an evidentiary showing in support of or in opposition to a motion for summary judgment.” (*Gutierrez v. Girardi* (2011) 194 Cal.App.4th 925, 933.) Further, Plaintiff’s admission to this request has the evidentiary effect of preclusively

		establishing this “fact” against Plaintiff, who has not sought, or received, leave to amend this admission. (Code Civ. Proc., § 2033.410, subd. (a).) Because Plaintiff is seeking to recover damages by his UCL claim, the UCL claim is “inextricably bound” to the denial of coverage, and the one-year limitations period applies. (Accord <i>Rosenberg-Wohl v. State Farm Fire & Casualty Co.</i> (2024) 16 Cal.5th 520, 536.) Accordingly, the Court finds that all of Plaintiff’s claims are time-barred, and Defendant is entitled to summary judgment. Defendant’s alternative motion for summary adjudication is moot. Defendant shall give notice of the ruling and submit a proposed judgment to the court and serve it upon all parties. The Jury Trial scheduled for 11/30/26 is vacated.
8.	2025-1478659 Esquivel vs. Toyota Motor Sales, U.S.A., INC	Defendant Toyota Motor Sales, U.S.A., Inc. (“Toyota”) demurs generally to the sixth cause of action for fraudulent inducement – concealment in the First Amended Complaint (“FAC”) filed by Plaintiffs Griselda Esquivel and Beyond Resource Solutions (collectively, “Plaintiff”). Toyota also seeks an order striking Plaintiffs’ prayer for punitive damages in Plaintiffs’ FAC. As an initial matter, the Court notes that once again none of the parties’ proofs of service complied with CCP section 1013b. In addition, Toyota’s proofs of service for Toyota’s reply in support of Toyota demurrer and reply in support of Toyota’s motion to strike states the replies were electronically served to an email address that is not in the Court’s record for Plaintiff’s counsel (SLPCaseDocs+2T2BAMBA5PCO20730Esquivel@slpattorney.com). The Court issues its ruling subject to any objections regarding service of the reply papers. The Court also notes the FAC adds a new plaintiff, Beyond Resource Solutions. No party objected to the addition of the new plaintiff. DEMURRER TO FAC <u>Sixth cause of action for fraudulent inducement – concealment</u> “The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (<i>Rattagan v. Uber Technologies</i>,